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Ray Nicklin and Desma Nicklin
53B Remiger Road, Puhoi

Resource Consent Application
Section 127 Consent Variation

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Document Record

Client	Ray Nicklin and Desma Nicklin
Site Address	53B Remiger Road, Puhoi
Job Number	40320
Document	Resource Consent Application
Document No	40320-RP-PLN-PL01-Section 127 Application.docx

Issue and Status

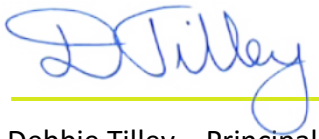
Date of Issue	13/05/2020
Status	For Resource Consent

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Contents

1.0 Property / Application Details 1

2.0 Introduction 1

2.1 Proposal in Brief 1

2.2 Main Issues Raised by the Proposal 2

3.0 Site and Locality Description 2

3.1 Site Description 2

3.2 Locality Description 3

4.0 Proposal 3

4.1 Relevant Background 3

4.1.1 Legal Restrictions 3

4.1.2 SUB60315119 3

4.1.3 Boundary Adjustment between 53 Remiger Road and Lot 5 DP 198556 Remiger Road 3

4.2 The Proposal 3

4.2.1 Change in Lot Sizes 3

4.2.2 Covenant Alteration 4

4.2.3 Stormwater Management 4

5.0 Reasons for the Application 5

5.1 Overview 5

5.2 Activity Status 5

5.2.1 Section 127 of Resource Management Act 1991 5

5.3 Proposed Consent Conditions 5

6.0 Application Assessment 7

6.1 Statutory Considerations and Weighting 7

6.1.1 Relevant Section of the RMA 7

6.1.2 Weighting of Plans 7

6.2 Section 104(1)(a) Actual and Potential Effects on the Environment 7

6.2.1 Permitted Baseline / Existing Environment 8

6.2.2 Positive Effects 8

6.2.3 Ecological Effects 8

6.2.4 Change in Lot Sizes 8

6.2.5 Adverse Effects Conclusion 9

6.3 Section 104(1)(b)(vi) Relevant Provisions of the Regional / District Plans Assessment Criteria, Objectives and Policies 9

6.3.1 Rodney District Plan 9

6.3.1 Auckland Unitary Plan 13

6.4 Section 104 (1) (b) (v) Relevant Provisions of the Regional Policy Statement 15

6.5 Section 104(1)(b)(i) and (ii) Relevant provisions of National Environmental Standards and other regulations, Section 104(1)(b)(iii) Relevant provisions of National Policy Statements, Section 104(1)(b)(iv) Relevant provisions of the New Zealand Coastal Policy Statement (NZCPS) 15

6.6 Section 104(1)(c) Any other matters considered relevant and reasonably necessary to determine the application 16

7.0 Notification 16

7.1 Public Notification 16

7.2 Limited Notification 16

8.0 Consideration of Part 2 (Purpose and Principles) of the RMA 17

9.0 Lapsing of Consent 17

10.0 Conclusion 17

11.0 Limitations 18

Appendix A: A3 Scheme Plan 1

Appendix B: Copy of Records of Title 2

Appendix C: SEA Bush Quality Report 3

Appendix D: Decision SUB60315119 4

1.0 Property / Application Details

Site Address:	53B Remiger Road, Puhoi
Legal Description:	Lot 8 DP 208981, Lot 5 DP 198556, Lot 1 DP 179794, Allots 32, 35, 54A & Pt Allots 30, 31, 36 Parish of Puhoi
Site Area:	302.3006ha
Operative Plans Applying:	Auckland Unitary Plan (Operative in Part) Auckland Council District Plan (Rodney Section)
Zoning:	General Rural Rural Production
Designations:	Natural Resources: Natural Stream Management Areas Overlay Natural Resources: Significant Ecological Areas Overlay – SEA_T_2535 Natural Resources: Significant Ecological Areas Overlay – SEA_T_6407 Natural Heritage: Outstanding Natural Landscapes Overlay – Area 46, Upper Puhoi Valley
Designations:	N/A
Other Applications Required:	N/A

2.0 Introduction

This document is an Assessment of Environmental Effects ("**AEE**") prepared in accordance with the requirements of Section 88 and 127 of the RMA and the Fourth Schedule to the RMA. All matters required to be addressed under the RMA are set out in this AEE.

2.1 Proposal in Brief

SUB60315119 was granted on 22 November 2017 and approves a rural subdivision creating five additional rural-residential lots on the basis of protecting 53.43ha of significant native bush. SUB60315119 also authorised a minor boundary adjustment with Lot 5 DP 198556. Ray and Desma Nicklin ("**the applicant**") seek to change conditions 1, 4.b) and c), 5.a) and 6.j) of resource consent SUB60315119 pursuant to section 127 of the Resource Management Act 1991 ("**RMA**"). The proposed changes only relate to minor alterations in lot sizes and moving the location of three consented covenant areas to the north around identified Significant Ecological Area ("**SEA**"). A Scheme Plan of the proposal is provided in **Appendix A** to this document.

2.2 Main Issues Raised by the Proposal

It is considered that there are no significant resource management issues raised by this proposal. While a resource consent is required, the proposal satisfies all relevant plan provisions and there are no adverse effects that are more than minor.

3.0 Site and Locality Description

3.1 Site Description

The site consists of several linked titles located to the north of Tunnel Road, Puhoi, with the main farm entrance being located in the northeast off Remiger Road. The Records of Title are provided in **Appendix B** to this document. The parent site and its location are shown in **Figure 1**.

The site has a mix of current land use, including large tracts of native bush, areas of regenerating pasture land, and large expanses of grazed pasture with stock including cattle, sheep, and deer. The topography of the property is generally steep, with generally north and south-facing slopes around a valley in the centre, running down from neighbouring covenanted bush to the west.

The flattest parts of the property are in the east of the site around the farm access, where the yards and farm accessory buildings are located. The property's existing dwelling is also in the northeast of the site. The main access is towards the end of Remiger Road.

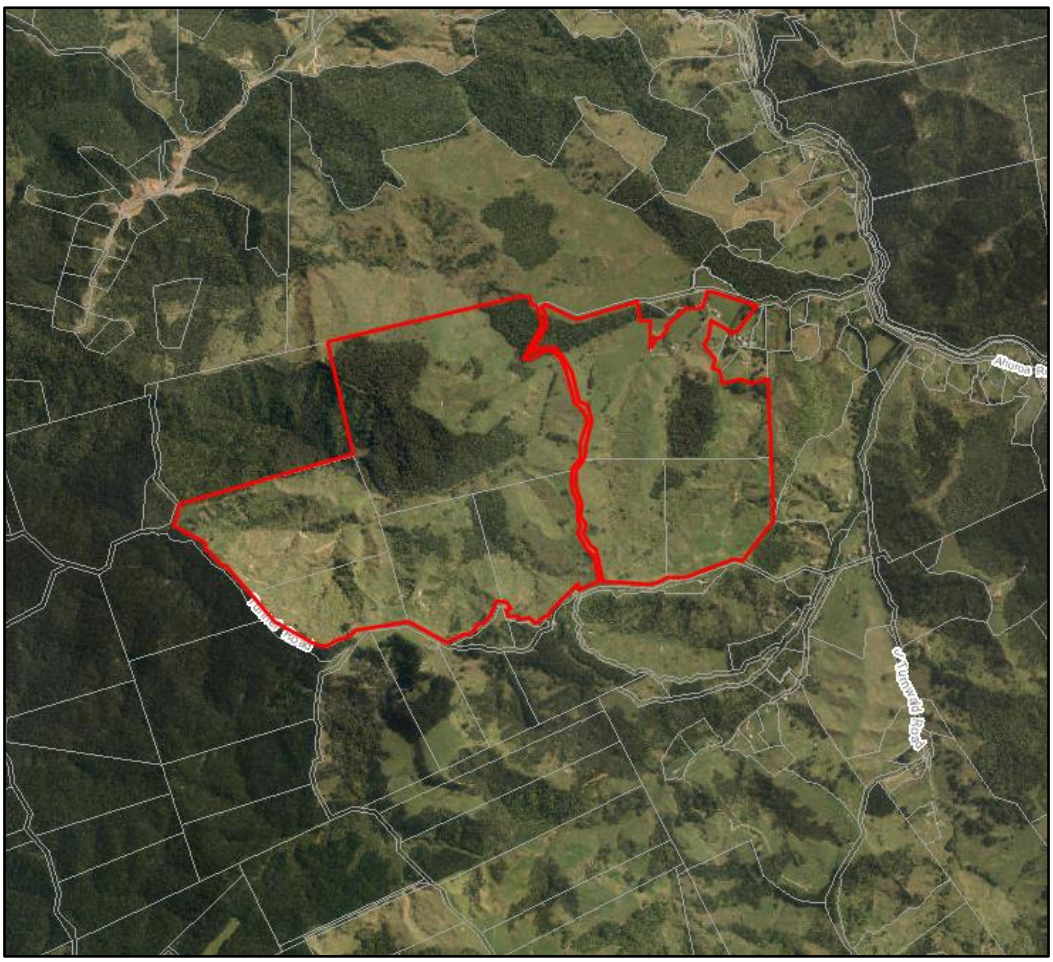


Figure 1: Location of site (highlighted in red) Remiger Road and Tunnel Road, Puhoi

3.2 Locality Description

Remiger Road follows a tributary of the Puhoi River and is characterised by the Remiger Bush Scenic Reserve to the north and rural lifestyle properties to the south ranging in size from smaller 1ha rural residential properties to larger rural blocks of 22ha or more.

Puhoi Village, located some 4km to the east of the site, is a rural village comprised of shops, a pub, play centre, library, church, and other community facilities. The main arterial route in the area, State Highway 1 ("**SH1**"), is located approximately 4.8km to the east of the site.

The topography of the wider area is rolling to hilly, with a mix of pasture and remnant native vegetation, mainly in gullies. The land to the west of the property is the Puhoi Forest pine plantation, while to the northwest the neighbouring property contains wide tracts of covenanted bush. A large revegetation project is currently occurring across the steep parts of the property to the north.

4.0 Proposal

4.1 Relevant Background

4.1.1 Legal Restrictions

The property has no legal constrictions that are considered relevant to the current application.

4.1.2 SUB60315119

As noted, SUB60315119 was approved in November, 2017 and isa rural subdivision creating five additional rural residential lots (Lots 1-5, ranging in size from 0.84ha-2ha) on the basis of protection of 53.43ha of significant native bush, and to undertake a minor boundary adjustment with an adjacent site. The approved subdivision has not been given effect too and will lapse in November 2022. A copy of SUB60315119 and the consented plans are provided in **Appendix D** to this AEE.

4.1.3 Boundary Adjustment between 53 Remiger Road and Lot 5 DP 198556 Remiger Road

A minor boundary adjustment application is currently being prepared that shifts approximately 0.1205ha from 53 Remiger Road, Puhoi to Lot 5 198556 Remiger Road, Puhoi. The reference number will be provided once the application has been lodged with Auckland Council.

4.2 The Proposal

4.2.1 Change in Lot Sizes

The proposal seeks to alter the sizes of Lots 3, 6 and 8 of the consented subdivision. The size of Lots 1, 2, 4, 5 and 7 will remain as per the consented application. All the locations of building sites will be the same as the consented application.

The proposed variation to the lot sizes, where applicable, is summarised below:

- Lot 1 - 0.84ha
- Lot 2 - 1.13ha
- Lot 3 - 1.87ha (decrease of 0.13ha)

- Lot 4 - 1.00ha
- Lot 5 - 1.00ha
- Lot 6 - 96.94ha in total, 96.40ha in net site area (decrease of 0.19ha total and 0.21ha net site area)
- Lot 7 – 197.94ha
- Lot 8 – 1.59ha (increase of 0.35ha)

No additional lots or development rights will be created through the variation. The proposal is to make more efficient use of the land and create lot sizes shapes that are more saleable in the current market, and better meet the anticipated needs of the current landowners and potential buyers.

4.2.2 Covenant Alteration

The proposal is to move the consented covenant area 'CT','CS' and 'CW' to the Significant Ecological Area ('**SEA**') area located in the northern part of Lots 6 and 7. This is because the consented covenant areas are located on steep topography creating difficulties for fencing. In addition, the northern bush areas are identified as SEA under the AUP(OP), where the ecological values are recognised by Auckland Council and preservation of this area will be more in line with the policy direction of the AUP(OP).

The main vegetation type of the SEA area in the north of Lots 6 and 7 is mature podocarp-broadleaf forest with an understorey of varied quality (some regenerating).

The ecological values of the bush are described in the Bush Quality Assessment Report provided in **Appendix C**. By way of summary, this assessment concludes that the areas of bush have vegetation quality exceeding the minimum requirements for acceptance based on the Appendix 7B criteria of the Rodney District Plan. Overall it is considered that protecting the bush will have significant benefits for terrestrial fauna and flora and provide additional security for the conservation of bush in the wider landscape.

As part of these covenants, it is proposed to undertake ongoing weed and pest animal control as detailed in the Weed and Pest Management Report approved under SUB60315119.

Under the District Plan rules, the minimum bush area to be protected for creating five additional titles is 42ha and up to 52ha. As 53.97ha will be protected, the new protection area is still within the thresholds for subdividing five additional lots.

4.2.3 Stormwater Management

As the total area to be protected will increase slightly to 53.97ha in comparison to the approved consent (53.43ha), the consented stormwater design still applies to the proposal.

The proposal will protect 53.07ha of significant native bush and 0.9ha of riparian planting, which will provide year round mitigation for the volume and speed of stormwater runoff. Overall, the proposal will continue to result in hydrological neutrality.

5.0 Reasons for the Application

5.1 Overview

Auckland Council is a Unitary Authority which is responsible for administering the various operative and legacy regional and district planning documents that apply within the Auckland Region. In respect to the relevant planning documents, those parts of the Proposed Unitary Plan Decision Version (19 August 2016) that are not subject to appeal were made operative on 15 November 2016 (Auckland Unitary Plan (Operative in Part ("**AUP (OP)**"). In respect to appeals, it is noted the Rural Production zoning of the site is not subject to appeal. The rural subdivision rules in respect to in-situ title creation from bush protection are subject to appeal therefore the Auckland Council District Plan: Rodney Section 2011 ("**District Plan**") is also relevant to this application.

5.2 Activity Status

5.2.1 Section 127 of Resource Management Act 1991

Section 127 of the RMA enables to the holder of a resource consent to apply to the consent authority for the change or cancellation of any condition of that consent (other than any condition on the duration of the consent). A variation under s127 of the RMA is not considered a new consent. The present right is defined by the original resource consent.

Subsection 3 (a) of s127 requires that a request to change or cancel of a condition is to be treated as a **Discretionary Activity** regardless of the original activity status of the application.

5.3 Proposed Consent Conditions

The proposal is to amend conditions relating to Scheme Plan and covenant references. No other changes or infringements will occur as a result of this variation, and remain as detailed in the original application document. In particular, it is noted that the covenant labels have stayed the same, and no new weed species have been found in the new proposed covenant areas. Therefore, the approved Weed and Pest report dated 1st October 2017 remains applicable to the consent.

This application seeks to amend conditions 1, 4.b) and c), 5.a) and 6.j) of SUB60315119 as follows (changes shown as underscored / strikethrough):

Report title and Reference	**Author**	**Rev**	**Dated**
Bush Quality Assessment Report	Cato Bolam Consultants		~~01/09/2017~~ 11/10/2019
Plan title and Reference	**Author**	**Rev**	**Dated**
Lots -1 – 8 being proposed subdivision of Lot 8 DP 208981, Lot 5 DP 198556, Lot 1 DP 179794, Allots 32,35,54A & Pt Allots	~~Jessica Reburn~~ Cato Bolam Consultants ~~Brittany~~ Pearce	~~5~~ 10	~~Sep 2017~~ Sep 2019

30,31,36 Parish of Puhoi -Sheet 1 of 2 (1200)			
Lots -1 – 8 being proposed subdivision of Lot 8 DP 208981, Lot 5 DP 198556, Lot 1 DP 179794, Allots 32,35,54A & Pt Allots 30,31,36 Parish of Puhoi -Sheet 2 of 2 (1200)	Cato Bolam Consultants	~~5~~ 10	~~Sep 2017~~ Sep 2019

General Conditions

1. The non-complying activity shall be carried out in accordance with the documents and drawings and all supporting additional information submitted with the application, detailed below, and all referenced by the council as resource consent number SUB60315119-A.

Application Form and Assessment of Environmental Effects prepared by Cato Bolam Consultants Ltd, titled by 'Ray Nicklin and Desma Nicklin, 53 Remiger Road, Puhoi, Resource Consent Application, Section 127 Variation, Ref: 40320, dated 11 November 2019

Survey plan approval (s223) conditions

4. Before council will approve the survey title plan pursuant to s.223 of the Act, the following requirements are to have been satisfied at the consent holder's cost:

b. The consent holder shall provide council with the calculated area(s) of bush and riparian margin to be protected on Lots 2,4,5,6 and 7 (Areas CP - C~~W~~V), CO, CX – CZ, Z) as shown on the approved scheme plan referred to in condition 1 and as defined by survey.

c. The survey title plan shall show and identify the area(s) of bush and riparian margin to be protected on Lots 2,4,5,6 and 7 (Areas CP – C~~V~~ W, CO, CX – CZ, Z) as "area to be subject to land covenant'. The boundaries of the covenant must coincide with the proposed fence line referred to in condition 5a.

Section 224(c) compliance Conditions

5. Before a Certificate is issued pursuant to section 224(c) of the Act, the consent holder shall satisfy the following conditions at the consent's holder:

Fencing of bush and riparian areas

a. A permanent ungated continuous stock-proof fence, (minimum seven wire post and batten fence with no gates) capable of preventing browsing or other damage by farmed animals, shall be constructed outside of the bush and riparian areas to be protected on Lots 2,4,5,6 and 7 (Areas CP-C~~W~~ V, CO. CX, CZ and Z) and maintained.

Consent Notice Conditions

6.

j. The natural areas to be protected on Lot 2(CX), 4 (CZ),5 (Z,CO & CY), 6 (CV~~,CW~~ CS) and 7 (CP – CR, CT -CU) identified by survey in accordance with conditions of resource consent SUB60315119-A shall be protected in perpetuity to the satisfaction of the council's Team Leader, North-West Monitoring.

6.0 Application Assessment

6.1 Statutory Considerations and Weighting

6.1.1 Relevant Section of the RMA

When considering an application for a discretionary activity the Council as consent authority must have regard to Part 2 of the RMA ("Purposes and Principles" – sections 5 to 8), and sections 104, 104B and 127 of the RMA.

Subject to Part 2 of the RMA, when considering an application for resource consent and any submissions received the Council must, in accordance with section 104(1) of the RMA have regard to the matters addressed in 6.2 – 6.4 below.

6.1.2 Weighting of Plans

The AUP(OP) activity relevant to this application, being E39.4.2(16) providing for in-situ subdivision creating additional sites through the protection of indigenous vegetation identified in the SEA overlay, is under appeal. The main aspects of the appeals relating to this application are:

- Applicability of individual assessment against Schedule 3 SEA criteria to allow the activity to apply to areas not currently identified as SEA; and
- Ability to create more than three in situ titles through the protection of SEA identified or SEA quality assessed indigenous vegetation.

Resolution of appeals in favour of the above corrections would be in line with the Independent Hearings Panel ("**IHP**") recommendations for the rules, and also generally consistent with the rules of the ACDP(RS).

It is therefore considered in the case of this application, which is in line with the recommendations of the IHP to which the appeals relate, that more weighting should be given to the still operative ACDP(RS).

6.2 Section 104(1)(a) Actual and Potential Effects on the Environment

Section 104(1)(a) of the RMA requires that a council have regard to any actual and potential effects on the environment of allowing the activity.

6.2.1 Permitted Baseline / Existing Environment

Pursuant to section 104 (2), when forming an opinion for the purposes of section 104 (1) (a) a council may disregard an adverse effect of the activity on the environment if the plan or a NES permits an activity with that effect (i.e., a council may consider the "permitted baseline"). In terms of the existing environment, there is an approved consent that provides for a 7-lot subdivision with formal protection of the native bush on the site in perpetuity, for which the effects were assessed to be no more than minor. In respect to potential adverse effects assessed in the AEE of the previous application, such as, ecological situation, significant areas, and landscape, rural character, landscape and amenity, rural productivity, infrastructure, etc., the proposed variation will not create any additional adverse effects beyond what is already consented for the site. A discussion of potential adverse effects is provided in **Sections 6.2.2 – 6.2.4** below.

6.2.2 Positive Effects

The proposal will continue to provide for the protection of the significant native bush area, and the total protection area will be increased to 53.97ha which will retain and improve the ecology of the site and the wider environment. The area of covenants will establish a cover of native plant species that will enable the natural processes of bush succession and regeneration, assisted through proximity to existing bush on the subject and neighbouring properties. Benefits of protecting this area include extending the existing approved covenant areas on the properties, increasing long term viability of closely associated natural areas, protecting slopes retired from productive use, improving water quality in the adjacent wetland, and providing wildlife habitat.

6.2.3 Ecological Effects

The proposal will swap the three consented covenant areas to the SEA area in the north of the site (Lot 6 & 7), where the ecological values are more recognised by the Council. The proposed changes are due to the steep topography resulting in the covenant areas being very difficult to fence. The protection and enhancement of ecological values of the site derived from the protection of the area with more recognised ecological value under the AUP (OP) offsets the potential loss of protection for the general covenant areas. The proposed variation will enable better implementation of the consent conditions, and legalise the protection of the area identified as 'SEA' under the AUP (OP).

The proposed covenant area will be 53.97ha, increased by 0.7ha in comparison to the consented application, which still meets the revegetation threshold for 5 additional lots under the ACDP: RS. The proposed covenant area will continue to provide ecological corridors between natural areas which will support a whole range of species, habitats and manage the hydrology of the site. This proposal will concentrate three covenant areas into two covenant areas situated adjacent to each other, thus reducing edge effects and creating a more continuous corridor of protected habitat.

The proposed variation will not adversely affect the ecological values associated with these areas and will continue to provide ecological benefits for the site and the wider environment.

6.2.4 Change in Lot Sizes

The site is zoned General Rural in the District Plan and Rural Production in AUP(OP). These zones are characterised by large properties with a low intensity of settlement and an environment that is less modified and dominated by natural features. The purpose of these zones is to provide for the use and development of land for rural production activities and rural industries and services while maintaining the rural character and amenity values.

It is proposed to slightly decrease the size of lots 3 and 6, and increase the size of lot 8 while keeping Lots 1,2,4,5 and 7 at the consented size. The end result will remain as per the approved scheme plan, with two larger rural lots and five smaller rural-residential titles. The proposal has no change in assessed effects as the layout and sizes of the lots is essentially the same as the approved subdivision.

The proposed character and pattern of development is in keeping with the existing surrounding allotments ranging from approximately 0.8-1.9ha in area. The rural landscape of the area will not be compromised by the variation as no additional lots or development rights are enabled, thereby maintaining this existing rural landscape. No additional development rights will be created by the proposal as no new proposed titles are more than 200ha.

The proposal will not have cumulative adverse effects on the environment that are more than minor, and it will not materially change the existing pattern of development

6.2.5 Adverse Effects Conclusion

Overall it is considered that the potential adverse environment effects of the proposed variation will be similar to, or less than, those resulting from the original subdivision consent approved by Council. The adverse environment effects of the proposal will be less than minor.

6.3 Section 104(1)(b)(vi) Relevant Provisions of the Regional / District Plans Assessment Criteria, Objectives and Policies

As outlined, the relevant plans applying to this proposal are the District Plan and the Unitary Plan. An assessment of the application against the relevant provisions of these planning documents is provided below.

6.3.1 Rodney District Plan

The following objectives, policies and assessment criteria of the ACDP(RS) are considered relevant:

- **Chapter 7 – Rural (All Rural)**
    - Objectives 7.3.1, 7.3.2, 7.3.3, 7.3.5, 7.3.6, 7.3.7, 7.3.8, and 7.3.10
    - Policies 7.4.2, 7.4.4, 7.4.5, 7.4.6, 7.4.7, 7.4.8, 7.4.9, 7.4.10, 7.4.15, and 7.4.16

Discussion

The Rural zone is characterised by minimal subdivision and development, large and small areas of bush, scrub, and wetlands which sustain the district's native plant and animal biodiversity, rural character and high amenity values. The above objectives and policies seek to manage, protect and enhance rural character, high amenity values and biodiversity values by limiting rural subdivision and development to subdivision which results in the protection of significant vegetation, wetlands and wildlife habitats, or enhancement planting, which can offset some of the adverse effects of subdivision on the environment and landscape values.

The proposal is in accordance with these objectives and policies, as the proposed variation will continue to enhance the rural character of the district by continuing to protect and enhance the recognised significant areas of native bush, providing ecological connections and corridors, and ensuring the long-term preservation of native habitat. Even though three consented covenant areas will be moved to the native bush area in the north of the site, the total protection area still meets the

minimum protection threshold for 5 lots. The environment outcome is therefore considered to be similar to the consented application. As such the proposed layout of the variation is of a nature, scale, intensity and location generally consistent with the District Plan (Policy 7.4.2).

Policy 7.4.4 relates to amenity values, and the application is in accordance with this. Even though the proposal will slightly change the lot sizes, the altered lot size and shape still enable all the existing future developments to be able to meet all the amenity-based development control standards. Given the smaller sizes of the altered rural residential lots, and the larger sizes of the balance lot and covenant areas, the ratio of open space to buildings will remain overall high, excepting in the concentrated cluster of lots in the vicinity of Remiger Road, where such a cluster already exists.

The dominant features of the balance lot will continue being grazing pasture and protected tracts of native bush in comparison to the consented proposal, thus the potential new dwellings will not detract from landscape values due to the new proposed lot size and layouts. The new varied lot boundaries incorporate existing divisions on the site, so are ideally located to avoid unusual or adverse effects in this regard.

The required amount of native bush on the site will continue being protected and enhanced through covenanting, and no removal, damage, destruction or modification to the native vegetation on the site will occur (Policy 7.4.8). As discussed, even though three consented covenant areas will be moved to the two larger SEAs in the north of the application site, the total area still meets the minimum protection threshold for 5 additional lots. Furthermore, the ongoing protection of the natural habitats will continue providing ecological benefits which provide sufficient mitigation for any adverse effects, as per the intention of the District Plan rules.

The proposal has been designed to be hydrologically neutral and only a small amount of earthworks will be required to facilitate the subdivision (Policy 7.4.15).

Overall it is considered the density of development will not compromise the amenity values anticipated in this zone, and is consistent with existing development in the area and Rural Zone provisions.

- **Chapter 7 – Rural (General Rural)**
    - Objectives 7.8.1.1.1, 7.8.1.1.2, 7.8.1.1.3, and 7.8.1.1.4
    - Policies 7.8.1.2.1, 7.8.1.2.2, 7.8.1.2.3, 7.8.1.2.4, 7.8.1.2.5, 7.8.1.2.11, 7.8.1.2.13, and 7.8.1.2.14

Discussion

The General Rural zone is recognised in the District Plan as being characterised by large properties, low intensity of settlement, significant natural areas, with an environment less modified by humans and generally dominated by farming activities. Rural residential lifestyle opportunities can be accommodated where the scale and intensity of settlement will avoid adverse effects on existing character and amenities, and where they result in native habitat restoration, land rehabilitation or the protection of significant bush, wetlands and wildlife habitat.

The proposed variation will continue protecting significant bush and wildlife habitat and continued native habitat restoration, enhancing the natural character and amenity values of this particular

landscape (Objective 7.8.1.1.1 and Policy 7.8.1.2.7). The capacity of the land unit to accommodate further development based upon protecting significant natural areas is provided for in the District Plan (Policy 7.8.1.2.2).

The continued protection of the bush will have significant benefits for native fauna and flora (Objective 7.8.1.1.2), and will ensure the continuance of improved water runoff to the downstream catchment, resulting from an increase in understorey vegetation after stock exclusion. The permanent protection proposed will ensure the natural areas on the site continue to improve, enhancing their significant ecological value and maintaining and restoring high-quality wildlife habitat. The development will also be hydrologically neutral (Policy 7.8.1.2.3 and Policy 7.8.1.2.14).

The proposed variation will result in a diversity of site sizes which will enable the continuation of rural activities in accordance with Policy 7.8.1.2.11. In respect to cumulative effects (Policy 7.8.1.2.4 and 7.8.1.2.13), these have been discussed earlier and it is noted that the permanent protection and management of bush provides benefits that will offset any perceived adverse effect of the proposed subdivision, and relocation of the three consented covenant areas to the two SEA areas in the northern part of the site. Open pasture land and protected native vegetation will continue to dominate the landscape in this area.

Overall the discussion above shows that the proposal is consistent with the relevant Objectives and Policies of the General Rural Zone.

- **Chapter 7 – Rural (Assessment Criteria)**
    - Rule 7.15.2 – Assessment Criteria: All Subdivision

Discussion

(a) Other Provisions – an assessment of the proposal against the objectives and policies for the rural zone is provided above.

(b) Rural Character – as outlined, less than minor adverse effects on rural character will result from this proposal.

(c) Shape and size of site and *(w) Layout and scale* - the adjusted lots will have a practical shape, incorporating existing site boundaries, buildings and ROWs. The balance lot will contain the covenant areas as well as pasture land for continued rural use.

(d) Earthworks – remains unchanged from the approved consent.

(e) Features to be protected – the bush areas on the site will be appropriately protected by way of covenants. The nominated building platforms are sited clear of the significant natural features to be protected as part of this development.

(f) Entranceways and *(g) Vehicle access* – remain unchanged from the approved consent.

(h) Quarrying – not applicable.

(i) Visual amenity – as outlined previously, the proposal will not detract from the visual amenity of the area in any way that is more than minor.

(j) Natural hazards - remain unchanged from the approved consent.

(*k) Financial Contributions* – remain unchanged from the approved consent.

(n) Utilities and Traffic Generation – remain unchanged from the approved consent.

(o) Boundaries and building areas – the new lot boundaries incorporate building areas suitable for development while taking into consideration access, natural geographic features and areas proposed for protection.

(p) Natural Features, (q) Fencing and *(r) Legal Protection* – The bush areas will be legally protected within the proposed covenant areas and stock will be excluded.

(s) Riparian margins – remain unchanged from the approved consent.

(t) Hydrological neutrality – remains unchanged from the approved consent.

(x) Location and Design of Subdivision – The proposed layout and future building placement has been carefully proposed to avoid any adverse effects on significant flora and fauna habitats.

(y) Maori Values – remain unchanged from the approved consent.

(z) Rural Productivity/Reverse Sensitivity – The location, design and density of the subdivision will not impact upon the productivity or management of established rural production activities.

(za) Water Quality – remains unchanged from the approved consent.

(zb) Cumulative Effects – The application is in accordance with the rules of the District Plan, and these rules have been designed to avoid the creation of adverse cumulative effects.

(zc) Wildlife Values – The proposed building sites will be the same as the consented application, and set a suitable distance away from the natural areas maintaining wildlife habitats, and no native vegetation removal will be required. Overall wildlife habitats will be enhanced through the proposed bush protection and associated weed and pest management.

(zd) Ecosystem Health – The variation will not adversely affect any flora or fauna species within the site.

(ze) Human Impact – remain unchanged from the approved consent.

- **Chapter 7 – Rural (Assessment Criteria)**
    - Rule 7.15.4 – Assessment Criteria: Subdivision for the Protection of Natural Areas

Discussion

(a) Legal and physical protection – The significant bush will be both legally and physically protected, including weed and pest control. Even though three consented covenant area will be relocated to two

areas in the north of the property, the total area of protection will be within the protection threshold for 5 lots. The environment outcomes are similar, if not improved, to the consented application.

(b) Significant natural areas and *(c) Adverse effects* – The subdivision will not adversely affect any areas identified on the District Plan maps as "Significant Natural Area".

(d) Vegetation clearance and earthworks – No vegetation clearance and no earthworks within the bush areas will be required.

- **Chapter 23 – Subdivision Provisions**
    - Objectives 23.3.1 and 23.3.3
    - Policies 23.4.1 and 23.4.2

Discussion

The subdivision design, including the size and shape of the sites, will create a pattern of landholding that can be used for rural purposes and accessed without creating adverse effects on the neighbourhood or environment (Objective 23.3.1). The proposal has been assessed against the General Rural Zone objectives and policies above, and it is concluded that the proposal will not significantly alter rural character, or adversely affect rural amenity values or the environment (Policy 23.4.1).

The provisions of Chapter 23 are to ensure that any new sites created are consistent with the provisions of the underlying zoning, can be adequately serviced without creating any off-site effects (Objective 23.3.3), each lot has a building platform which has been consented in the previous application, and it free from any natural hazards and that the proposed development does not exacerbate any natural hazard on or off the site. The new layout variation has been designed to meet these requirements. Provisions for infrastructure services can be provided (Policy 23.4.2). Overall it is considered the proposed development will not be contrary to the objectives and policies of Chapter 23.

6.3.1 Auckland Unitary Plan

The following objectives, policies and assessment criteria of the AUP(OP) are considered relevant:

- **Chapter E39 – Subdivision – Rural**
    - Objectives E39.2.1, E39.2.4, E39.2.6, E39.2.8, E39.2.10, E39.2.12, E39.2.14, and E39.2.15
    - Policies E39.3.1, E39.3.2, E39.3.3, E39.3.10, E39.3.11, E39.3.13, E39.3.15, E39.3.17, E39.3.18, E39.3.20, E39.3.26, E39.3.27, E39.3.28, E39.3.30, and E39.3.31

Discussion

The subdivision provisions for the rural zones overall focus on encouraging subdivision only within the Countryside Living Zone in order to preserve the rural environment across the remaining area. As notified, the Unitary Plan does not provide for the creation of more than three in-situ sites. Therefore

some elements of the proposed variation are not in line with the provisions of the Unitary Plan, however the titles based on the protection of SEA bush are.

The proposal is also considered in line with some of the other rural subdivision objectives and policies. The proposed variation has been designed in a manner to maintain rural character and amenity (Objective E39.2.8 and E39.2.15), and has a layout which is logical and in relatively close proximity to the rural settlement of Puhoi. There are no surrounding land uses which will be hindered in their use by the creation of the proposed new rural residential lots. Furthermore, compared to the consented application, the proposal will protect ecologically sensitive areas and all the SEA on the site, which more in line with Objectives E39.2.12 & E39.2.14 (a), and Policies E39.3.15 & E39.3.17-18. The proposed development will also ensure low visibility of the building platforms and promote retention of amenity values and rural character (Policy E.39.3.20 (b) & (d), E39.3.26-27).

Furthermore, as outlined previously in this document, the variation provisions for the protection of significant indigenous vegetation have been appealed by Council. The IHP version of the Plan (notified 22 July 2016) continued to provide for in situ subdivision creating more than three additional sites through the protection of indigenous vegetation, if the vegetation was either identified as SEA or assessed to meet SEA criteria (Activity E39.4.2A17), as a RD activity. SEA criteria ('factors') are outlined in Schedule 3 of the plan (Significant Ecological Areas – Terrestrial Schedule). The bush proposed for protection is not all identified as SEA, but is considered to meet SEA criteria as outlined in the accompanying Bush Quality Assessment Report.

On balance the zoning provisions of the Unitary Plan raise no new issues not already comprehensively addressed and the development will maintain consistency with the intent of the Unitary Plan.

- **Chapter H19 – Rural Zones (All Rural)**
    - Objectives H19.2.1.2, H19.2.1.4, H19.2.3.1, H19.2.3.2
    - Policies H19.2.2.4, H19.2.2.5, H19.2.4.1, H19.2.4.3

Discussion

The rural zone objectives outlined above focus on rural production, particularly in areas with elite soil, while avoiding fragmentation of this production land and providing for a range of activities and services to support rural production and living. The rural zone general policies support these objectives.

In terms of this application, the property is located in an area without elite soils and where vast areas of production land will be retained due to the large size of the property. The application is merely an alternation in lot sizes, the location of each lots will be roughly the same as the consented application SUB60315119. The new lots will be created in a cluster on the very edge of the property, thus not inhibiting or affecting the main farming operative. The proposal does therefore not significantly detract from the aims of the rural zone as it retains the existing character of the area.

The proposal directly meets the objectives for rural character, amenity and biodiversity values (Objectives H19.2.3.1-2, Policies H19.2.4.1 & 3) through the proposed bush protection and associated management which will improve biodiversity value. Rural productive activities can be continued on the balance site (Policy H19.2.2.4).

- **Chapter H19 – Rural Zones (Rural Production)**
    - Objective H19.3.2.2
    - Policy H19.3.3.1

Discussion

The purpose of the Rural Production Zone is to provide for the use and development of land for rural production activities and rural industries and services, while maintaining rural character and amenity values. The objectives and policies mainly refer to promoting rural production, forestry, and intensive farming operative. Subdivision is discouraged as it is considered inappropriate (Objective 19.3.2.2), and the protection of significant natural areas is not encouraged at all.

This proposal is incommensurate with the subdivision intentions of the rural productive zoning under the Unitary Plan, however, it is noted that the objectives only refer to protecting the land from inappropriate subdivision, whereas this consent variation is considered appropriate as it is in accordance with an existing consent and generally in line with the rural zone and rural subdivision objectives and policies. Existing rural production on the property will continue to be provided for in line with Policy H19.3.3.1.

6.4 Section 104 (1) (b) (v) Relevant Provisions of the Regional Policy Statement

Chapter B of the Unitary Plan contains the Regional Policy Statement ("RPS") and sets out the direction of managing the use, development, and protection of the natural and physical resources of the Auckland region.

The strategic objectives and policies of the RPS provide a framework to achieve the integrated, consistent and co-ordinated management of the Region's resources.

Under the RPS, matters related to environmental protection, such as the coastal environment, water quality, water conservation/allocation, and air quality have specific objectives and policies to achieve sustainable and integrated management of major natural and physical resources in the Region.

The relevant provisions of the RPS have been considered, and it is concluded the proposal is consistent with the RPS. Integrated resource management in rural areas requires trading off different values to achieve the purpose of the RMA. The proposed Section 127 application will not compromise the environmental values of the two properties or the underlying character, amenity, and productive use of the surrounding rural landscape.

6.5 Section 104(1)(b)(i) and (ii) Relevant provisions of National Environmental Standards and other regulations, Section 104(1)(b)(iii) Relevant provisions of National Policy Statements, Section 104(1)(b)(iv) Relevant provisions of the New Zealand Coastal Policy Statement (NZCPS)

In terms of the National Environmental Standard for Assessing and Managing Contaminants in Soil to Protect Human Health, this matter was also addressed as part of the consented application and does not change as a result of this variation.

There are no other National Environmental Standards or other regulations that apply to this application.

The New Zealand Coastal Policy Statement ("**NZCPS**") is not applicable to this application.

6.6 Section 104(1)(c) Any other matters considered relevant and reasonably necessary to determine the application

In this case there are no other matters that are considered necessary to determine the application

7.0 Notification

7.1 Public Notification

Having undertaken the s95A public notification tests, the following conclusions are reached:

- Under step 1, public notification is not mandatory.
- Under step 2, public notification is precluded as the application is essentially a section 127 consent variation with an overall activity status of Discretionary Activity.
- Step 3 of the notification tests is not applicable due to the finding of step 2.
- Under step 4, there are no special circumstances that warrant the application being publicly notified. The application is a section 127 consent variation, which is provided for as a Discretionary Activity under Rule E39.4.1(A10) of the AUP (OP). Therefore, there is nothing exceptional or unusual about the proposal.

It is therefore recommended that this application be processed without public notification.

7.2 Limited Notification

Having consideration to the s95B limited notification tests, the following conclusions are reached:

- Under step 1, limited notification is not mandatory.
- Under step 2, there is no rule or NES that specifically precludes limited notification of the activity, and the application is for an activity other than those specified in s95B(6)(b).
- Under step 3, limited notification is not required as it is considered that the adverse effects of the activity are less than minor subject to the mitigation proposed in the application and which would be required as conditions of consent.
- Under step 4, there are no special circumstances that warrant the application being limited notified to any persons.

There is therefore no basis to limited notify this application.

Pursuant to section 95A of the RMA, it is considered this application may proceed on a non-notified basis.

8.0 Consideration of Part 2 (Purpose and Principles) of the RMA

Section 5 in Part 2 identifies the purpose of the RMA as being the sustainable management of natural and physical resources. This means managing the use of natural and physical resources in a way that enables people and communities to provide for their social, cultural and economic well-being while sustaining those resources for future generations, protecting the life supporting capacity of ecosystems, and avoiding, remedying or mitigating adverse effects on the environment.

Section 6 of the Act sets out a number of matters of national importance which need to be recognised and provided for, and includes among other things and in no order of priority, the protection of outstanding natural features and landscapes, the protection of areas of significant indigenous vegetation and significant habitats of indigenous fauna, and the protection of historic heritage.

Section 7 identifies a number of "other matters" to be given particular regard by a council in the consideration of any assessment for resource consent, and includes the efficient use of natural and physical resources, and the maintenance and enhancement of amenity values. Section 8 requires a council to take into account the principles of the Treaty of Waitangi.

Overall the application is considered to meet the relevant provisions of Part 2 of the RMA as the proposal achieves the purpose of the RMA being sustainable management of natural and physical resources.

9.0 Lapsing of Consent

Section 125 of the RMA provides that if a resource consent is not given effect to within five years of the date of the commencement (or any other time as specified) it automatically lapses unless the consent authority has granted an extension. In this case, it is considered five years is an appropriate period.

10.0 Conclusion

The proposal is to vary the conditions of SUB60315119, and to alter the approved Scheme Plans, specifically in regards to altering the size of lots 3, 6 and 8, and relocating three consented covenant areas to the SEA area in the north of the site. Related consent conditions have also been proposed for alteration to reflect these changes.

The variation is entirely consistent with the consented proposal, the objectives and policies of the rural production zone, and the purpose and principles of the RMA, resulting in no impediment to the granting of consent.

Furthermore, the actual and potential effects likely to result from the proposed subdivision have been considered in accordance with section 104(1)(a) of the RMA, as set out in Section 6 of this AEE. By way of summary, it is concluded that any actual or potential effects of the variation on the surrounding environment will be less than minor. The proposed subdivision has also been assessed to be consistent with the relevant objectives and policies of the AUP (OP) in accordance with section 104 (1) (b) of the RMA.

Overall, it is considered that the proposed development is consistent with the purpose and principles of the RMA and that the consent sought should be granted.

11.0 Limitations

This report has been prepared for the particular project described to us and its extent is limited to the scope of work agreed between the client and Cato Bolam Consultants Limited.

No responsibility is accepted by Cato Bolam Consultants Limited or its directors, servants, agents, staff or employees for the accuracy of information provided by third parties and/or the use of any part of this report in any other context or for any other purposes.

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